

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 13-05

**OCEAN TRANSPORTATION INTERMEDIARY LICENSING AND FINANCIAL
RESPONSIBILITY REQUIREMENTS, AND GENERAL DUTIES**

COMMENTS OF DIANE SCHEXNAYDER

I am Diane Schexnayder, President of W. R. Zanes & Co. of La., Inc.

W. R. Zanes & Co. of La., Inc. is a freight forwarder, License No. 752F, with four (4) office locations. All offices are located in the USA.

We are a member of the NCBFAA and are familiar with the issues raised by the NPRM. We are very concerned about the issues raised by NPRM.

We are opposed to FMC's proposal to require all forwarders and NVOCCs provide updated corporate information through a process that would renew licenses every three years. Presently, FMC Licenses do not have term limits and can be suspended or revoked only for limited extraordinary reasons. If terms of licenses are limited as proposed, this places the forwarder in a position of non-renewal every three years, without regulations being specific as to the conditions of non-renewal other than not filing for renewal timely. The FMC should simply establish a triennial report for each licensee to provide current company information without concerns regarding license renewals.

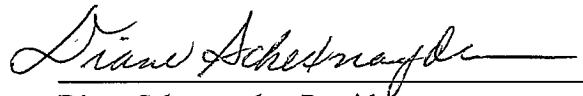
We oppose sureties being required to file with the FMC a list of any claims made to them that relate in any way to the transport activities of a forwarder or NVOCC. A claim being filed does not necessarily support the FMC forwarder, etc. as being the cause, especially if the claim is not as yet settled. Even if not published by the FMC on their website or otherwise, any release of such data could be damaging to the forwarder, especially since the claim or claims may not have merit. Our firm is in business since 1914; to our knowledge, never has a claim been filed with our bonding company, so it is questionable what the benefit such additional regulations and requirements will generate for the shipping public. We believe most forwarders have similar records to ours. Should a complaint be filed with the FMC, then we understand the gathering of data in such cases; but, to shop for such is unnecessary.

With regard to advertising, the regulation, if indeed is necessary, should be amended so that it only applies to unlicensed companies who hold themselves out to provide complete OTI services, rather than when the unlicensed firms are only a service provider of licensed OTI's.

We support eliminating the need for additional bonding for all branch offices.

We support elimination of the certification to carriers of their entitlement to forwarder compensation. In the shipping documents, the forwarder indicates their FMC number so the carrier is aware that the forwarder is licensed and entitled to compensation on the transaction.

Dated: December 9, 2014

A handwritten signature in cursive script, reading "Diane Schexnayder", written over a horizontal line.

Diane Schexnayder, President
W. R. Zanes & Co. of La., Inc.